



[CHAPTER xl

An Act to empower the Staffordshire Potteries Water Board to construct waterworks and acquire lands for the purpose to amend the enactments regulating the use of water impounded by certain compensation reservoirs of the Board to extend the limits for the supply of water by the Board to alter the constitution of the Board and for other purposes.

[30th July 1949.]

WHEREAS the Staffordshire Potteries Water Board (in the preamble to this Act called "the Board") were by the Staffordshire Potteries Water Board Act 1924 (in the preamble to this Act called "the Act of 1924") constituted and incorporated for the purpose of acquiring the water undertaking of the Staffordshire Potteries Waterworks Company (in the preamble to this Act called "the company") and of supplying water within the city of Stoke-on-Trent and parts of the county of Stafford (in the preamble to this Act called "the limits of supply") and by the said Act it was provided that the powers rights privileges authorities duties and obligations of the company under the Staffordshire Potteries Waterworks Acts 1853 to 1922 should be transferred to vested in and imposed on the Board and that those Acts should be read and have effect as if the Board had been therein named instead of the company subject to certain exceptions and provisions mentioned in the said Act of 1924:

And whereas further powers were conferred upon the Board by the Staffordshire Potteries Water Board Act 1928 and the Staffordshire Potteries Water Board Act 1937:

And whereas the population within the limits of supply is growing and the consumption of water has increased and is increasing :

And whereas it is expedient to extend the limits of supply :

And whereas the company constructed a compensation reservoir in Deep Hayes Valley (in lieu of the water abstracted by them from springs and streams which flowed into the river Churnet) and an additional compensation reservoir at or near Tittesworth for the benefit of owners and occupiers of the several mills specified in section fifty-two and referred to in section sixty-eight of the Staffordshire Potteries Waterworks Consolidation and Extension Act 1853 the owners and occupiers of the mills referred to as the Dove Mills and specified in section twenty-seven of the Staffordshire Potteries Waterworks Amendment Act 1861 and the owners of the canals referred to in the said section fifty-two of the said Act of 1853 :

16 & 17 Vict.
c. cxcviii.

24 & 25 Vict.
c. cxlvi.

And whereas the number of mills on the said river has diminished and it is expedient to vary the obligations of the Board with respect to the discharge from the said reservoirs of compensation water :

And whereas it is expedient that the Board should be empowered to make and maintain the waterworks authorised by this Act :

3 & 4 Geo. 6.
c. 16.

And whereas the Board were empowered by the Staffordshire Potteries Water Board Act 1937 to make waterworks as described in subsection (1) of section 6 of that Act and by section 9 of that Act the period for the completion of those works was limited to seven years from the thirtieth day of July nineteen hundred and thirty-seven which period has since been extended by orders made by the Minister of Health in pursuance of the powers conferred upon him by section 1 of the Special Enactments (Extension of Time) Act 1940 and will expire on the thirtieth day of July nineteen hundred and fifty :

And whereas owing to the events which have happened since the date of the passing of the said Act of 1937 it has been impossible for the Board to complete the said waterworks and it will be impossible for them to do so before the expiration of the period above referred to and it is expedient further to extend such period :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Board for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the construction of the waterworks other than the aqueducts authorised by this Act	1,341,500
For the construction of the aqueducts authorised by this Act	881,200
For the purchase of lands and easements for and in connection with the waterworks authorised by this Act	98,300

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years:

And whereas the provisions of subsection (3) of section 51 of the Act of 1924 relating to the promotion by the Board of Bills in Parliament have been observed in relation to the Bill for this Act:

And whereas plans and sections shewing the lines situations and levels of the waterworks authorised by this Act and plans of the lands authorised by this Act to be acquired or used and a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the council of the administrative county of Stafford and with the town clerk of the city of Stoke-on-Trent which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I

PRELIMINARY

1. This Act may be cited as the Staffordshire Potteries Water Short title Board Act 1949.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Land.

Part III.—Works &c.

Part IV.—Extension of limits of supply and alteration of constitution of Board.

Part V.—Finance and miscellaneous.

Act divided into Parts.

PART I
—cont.
Incorporation
of Acts.8 & 9 Vict.
c. 18.23 & 24 Vict.
c. 106.8 & 9 Vict.
c. 20.8 & 9 Geo. 6.
c. 42.30 & 31 Vict.
c. 127.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say):—

(a) The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 and the words “with two sufficient sureties to be approved of by two justices in case the parties differ” in section 85 of that Act and except section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860;

(b) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and section 16 of that Act;

(c) The following provisions of the Third Schedule to the Water Act 1945 (namely):—

Part I (Interpretation) so far as it relates to the following provisions of the said Third Schedule:

Part II (Works and lands) except section 7;

Part IV (Minerals underlying waterworks);

Part VI (Breaking open streets &c.) except paragraph (b) of the proviso to section 23;

In Part XIII (Provisions for preventing waste &c. of water and as to meters and other fittings) section 70;

In Part XVI (General and miscellaneous) sections 92 93 and 94:

Provided that—

(i) in and for the purposes of this Act the expressions “the undertakers” or “the promoters of the undertaking” or “the company” used in such incorporated enactments shall mean the Board;

(ii) for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Board shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly;

(iii) for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 “the railway” shall mean the works by this Act authorised to be constructed by the Board and the centre lines of the embankments of the reservoir and of the aqueducts or lines of pipes authorised by this Act as shewn on the deposited plans shall be deemed to be the centre of the railway;

- (iv) for the purposes of the incorporated provisions of the Third Schedule to the Water Act 1945 section 2 of the said schedule shall be read and have effect as if the expression "the deposited plans" were substituted therein for the expression "the plans submitted to the Minister" and the expression "the deposited sections" were substituted therein for the expression "the said plans" wherever the last-mentioned expression occurs in that section and the word "sewer" in Part VI of the said schedule shall be deemed to include any main pipe or apparatus for the supply or distribution of water.

4. In this Act unless the subject or context otherwise requires Interpretation the several words and expressions to which by the Acts wholly or of terms. partly incorporated with this Act meanings are assigned shall have the same respective meanings And—

"The Board" means the Staffordshire Potteries Water Board ;

"The undertaking" means the undertaking of the Board as from time to time authorised ;

"The clerk" means the clerk of the Board ;

"The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by Part V of the Town and Country Planning Act 1947 ;

9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

"The tribunal" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred pursuant to the Acquisition of Land (Assessment of Compensation) Act 1919 ;

"The existing limits" means the limits within which the Board were immediately before the passing of this Act authorised to supply water ;

"The added limits" means the area described in the Third Schedule to this Act ;

"The limits of supply" means the limits within which the Board are for the time being authorised to supply water ;

"The Deep Hayes reservoir" means the reservoir of the Board in Deep Hayes Valley ;

"The Tittesworth reservoir" means the reservoir of the Board near Tittesworth ;

"The waterworks" means the works described in section 11 (Power to make works) of this Act ;

"The Minister" means the Minister of Health ;

PART I
—cont.31 & 32 Vict.
c. cxxxi.51 & 52 Vict.
c. clvii.2 & 3 Geo. 5.
c. lxxv.

“The Act of 1853” means the Staffordshire Potteries Waterworks Consolidation and Extension Act 1853;

“The Act of 1861” means the Staffordshire Potteries Waterworks Amendment Act 1861;

“The Act of 1868” means the Staffordshire Potteries Waterworks Act 1868;

“The Act of 1888” means the Staffordshire Potteries Waterworks Act 1888;

“The Act of 1912” means the Staffordshire Potteries Waterworks Act 1912;

“The Act of 1924” means the Staffordshire Potteries Water Board Act 1924;

“The Act of 1937” means the Staffordshire Potteries Water Board Act 1937;

“The city” means the city of Stoke-on-Trent;

“The Stoke Corporation” means the lord mayor aldermen and citizens of the city;

“The Newcastle Corporation” means the mayor aldermen and burgesses of the borough of Newcastle-under-Lyme;

“The county council” means the council of the administrative county of Stafford;

“The commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive;

“The Stone Council” means the urban district council of Stone;

“The Stone agreement” means the agreement dated the sixteenth day of June nineteen hundred and forty-nine and made between the Stone Council of the one part and the Board of the other part as set forth in the Fourth Schedule to this Act;

“The Stone undertaking” means the water supply undertaking of the Stone Council as defined in the Stone agreement and therein called “the undertaking of the Council.”

PART II

LAND

Powers to
acquire lands.

5.—(1) Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purposes of the waterworks.

(2) The powers of the Board for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and forty-nine.

6.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Board after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the place in which the land is situate for the correction thereof.

Correction
of errors
in deposited
plans and
book of
reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the county council or the town clerk of the city (as the case may require) and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the land in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

7. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice in writing of their intention to exercise the powers of this section the Board may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845 :

Power to
expedite
entry.

Provided that the Board shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

8. Any person acting on behalf of the Board and duly authorised in writing by the clerk may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land :

Power to
enter for
survey or
valuation.

PART II
—cont.26 Geo. 5. &
1 Edw. 8.
c. 49.Disregard
of recent
improvements
and interests.

Provided that no land shall be entered under this section unless the Board not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice in writing to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

9. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and forty-eight; or

(b) any interest in the land created after the said date; which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Power to
acquire
easements only.

10.—(1) In lieu of acquiring any land that may be acquired under this Act the Board may for the purpose of constructing using and maintaining so much of the waterworks authorised by this Act as will be laid underground and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for that purpose.

(2) Accordingly the Board may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Board have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Board to acquire the land the Board shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

PART II
—cont.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

(6) The Board shall not under the provisions of this Act purchase or acquire the lands shewn on the deposited plans and numbered respectively in the deposited book of reference 2 2A 2B 3 4 5 6 13 14 15 16 17 18 19 20 21 22 23 24 26 27 28 29 30 31 32 33 34 35 39 56 57 59 60 62 63 64 67 68 69 70 71 72 73 and 74 in the city 144 145 and 150 in the parish of Cheddleton and 21 21A 23 and 24 in the parish of Caverswall but may acquire in accordance with the provisions of this section such easements or rights therein as they may require for the purpose of constructing using and maintaining so much of Works Nos. 13 14 15 16 17 20 21 22 23 24 25 26 27 28 31 32 34 and 35 as will be laid therein.

PART III

WORKS &C.

11. Subject to the provisions of this Act the Board may construct lay down and maintain in the lines or situations shewn on the deposited plans and according to the levels shewn on the deposited sections relating thereto respectively the following works in the county of Stafford and in the city (that is to say):—

Work No. 1. An enlargement of the Tittesworth reservoir by an extension and raising of the dam or embankment of the said reservoir already constructed across the river Churnet to be situated in the parishes of Leekfrith and Tittesworth in the rural district of Leek ;

Work No. 2. A diversion in the said parish of Leekfrith of the existing road from Meerbrook to Upper Hulme commencing and terminating by junctions with the said existing road ;

Work No. 3. A diversion in the said parish of Leekfrith of the existing road from Meerbrook to Abbey Green commencing and terminating by junctions with the said existing road ;

Work No. 4. Sewage disposal works (with an intercepting drain) at Upper Hulme in the parishes of Heathylee Leekfrith and Tittesworth in the rural district of Leek ;

Work No. 5. An intake in a tributary of the river Churnet at Solomon's Hollow (with an aqueduct) in the said parish of Tittesworth ;

PART III
—cont.

Work No. 6. An intake in a tributary of the river Churnet at Solomon's Hollow (with an aqueduct) in the said parish of Tittesworth and the urban district of Leek ;

Work No. 7. An aqueduct conduit line or lines of pipes in the said parish of Tittesworth commencing by a junction with Works Nos. 5 and 6 above referred to and terminating at Work No. 1 above referred to ;

Work No. 8. An aqueduct conduit line or lines of pipes in the said parishes of Leekfrith and Tittesworth commencing at Work No. 1 above referred to and terminating at Work No. 9 ;

Work No. 9. A filter-house and pumping station at Tittesworth in the said parish of Tittesworth ;

Work No. 10. An aqueduct conduit line or lines of pipes in the said parish of Tittesworth and the parish of Longsdon in the rural district of Leek and the urban district of Leek ;

Work No. 11. An enlargement of the Deep Hayes reservoir by an extension and raising of the dam or embankment of the said reservoir already constructed across a tributary of the river Churnet to be situated in the parish of Cheddleton in the rural district of Cheadle ;

Work No. 11A. A filter-house at Wall Grange in the said parish of Longsdon ;

Work No. 12. A service reservoir (to be called the "Ladderedge service reservoir") in the said parish of Longsdon ;

Work No. 12A. A waste water conduit or line or lines of pipes in the said parish of Longsdon commencing at Work No. 12 above referred to and terminating at Sutherland Road in the said parish ;

Work No. 13. An aqueduct conduit line or lines of pipes in the said parish of Longsdon the parishes of Endon and Stanley and Norton in the Moors in the rural district of Leek the parish of Caverswall in the rural district of Cheadle and the city commencing at Work No. 12 above referred to and terminating at Work No. 15 ;

Work No. 14. An aqueduct conduit line or lines of pipes in the city commencing by a junction with Work No. 13 above referred to and terminating at the existing service reservoir of the Board known as "Birches reservoir" ;

Work No. 15. A service reservoir (to be called the "Bucknall service reservoir") in the parish of Caverswall in the rural district of Cheadle and the city ;

Work No. 16. A waste water conduit or line or lines of pipes in the city commencing at Work No. 15 above referred to and terminating at Werrington Road ;

Work No. 17. An aqueduct conduit line or lines of pipes in the said parish of Longsdon and the parishes of Cheddleton and Caverswall in the rural district of Cheadle commencing at the existing pumping station of the Board known as "Wall Grange pumping station" and terminating at Work No. 18 ;

Work No. 18. A service reservoir (to be called the "Werrington service reservoir") in the said parish of Caverswall ;

Work No. 19. A waste water conduit or line or lines of pipes in the said parish of Caverswall commencing at Work No. 18 above referred to and terminating at Werrington Road in the said parish ;

Work No. 20. An aqueduct conduit line or lines of pipes in the said parish of Caverswall and the city commencing at Work No. 18 above referred to and terminating by a junction with an existing line of pipes at Market Street Longton in the city ;

Work No. 21. An aqueduct conduit line or lines of pipes in the city commencing by a junction with Work No. 20 above referred to and terminating at Work No. 15 above referred to ;

Work No. 22. An aqueduct conduit line or lines of pipes in the city commencing at Work No. 15 above referred to and terminating by a junction with Work No. 20 above referred to ;

Work No. 23. An aqueduct conduit line or lines of pipes in the city commencing by a junction with an existing line of pipes in Trentham Road and terminating at Work No. 24 ;

Work No. 24. A service reservoir (to be called the "Thistley Hough service reservoir") in the city ;

Work No. 25. A waste water conduit or line or lines of pipes in the city commencing at Work No. 24 above referred to and terminating at Harpfield Road ;

Work No. 26. An aqueduct conduit line or lines of pipes in the city commencing at Work No. 24 above referred to and terminating by a junction with an existing line of pipes in Campbell Road ;

PART III
—cont.

Work No. 27. An aqueduct conduit line or lines of pipes in the city commencing at Work No. 24 above referred to and terminating by a junction with an existing line of pipes at the point of junction of London Road and Newcastle Road ;

Work No. 28. An aqueduct conduit line or lines of pipes in the parish of Barlaston in the rural district of Stone and the city commencing by a junction with an existing line of pipes at Belgrave Road Longton in the city and terminating at Work No. 29 ;

Work No. 29. A service reservoir (to be called the "Cocknage service reservoir") in the said parish of Barlaston ;

Work No. 30. A waste water conduit or line or lines of pipes in the said parish of Barlaston commencing at Work No. 29 above referred to and terminating at a watercourse in the said parish ;

Work No. 31. An aqueduct conduit or line or lines of pipes in the said parish of Barlaston and the city commencing at Work No. 29 above referred to and terminating at the junction of Church Road and Trentham Road in the city ;

Work No. 32. An aqueduct conduit or line or lines of pipes in the city commencing at the existing Meir pumping station of the Board and terminating at Work No. 33 ;

Work No. 33. A service reservoir (to be called "the Shootershills service reservoir") in the city ;

Work No. 34. A waste water conduit or line or lines of pipes in the city commencing at Work No. 33 above referred to and terminating at Sandon Road ;

Work No. 35. An aqueduct conduit line or lines of pipes in the city commencing at Work No. 33 above referred to and terminating by a junction with an existing line of pipes in Sandon Road.

Stopping up
roads in case of
diversion.

12.—(1) Where this Act authorises the diversion of a road and the stopping up of an existing road or any portion thereof such stopping up shall not take place until the new road is completed to the satisfaction of the highway authority pursuant to section 34 (For protection of Staffordshire County Council) of this Act and is open for public use.

(2) As from the completion of the new road to the satisfaction of the highway authority as aforesaid all rights of way over or along the existing road or portion thereof shall be extinguished and the Board may subject to the provisions of Part IV of the Third Schedule to the Water Act 1945 with respect to minerals underlying waterworks appropriate and use for the purposes of

the undertaking the site of the portion of the road stopped up as far as the same is bounded on both sides by lands of the Board.

PART III
—cont.

13. It shall be lawful for the Board at any point outside the limits of supply to make maintain and use junctions connections and communications between all or any of the existing waterworks of the Board or of the waterworks and any mains pipes conduits aqueducts culverts or other works of the Board made or to be made:

Provided that the provisions of Part VI of the Third Schedule to the Water Act 1945 with respect to the breaking open of streets shall apply to the making maintenance and use of any such junctions connections or communications in any street.

14.—(1) The Board during and for the purpose of the execution of the waterworks may temporarily stop up and interfere with any street or road or part of a street or road comprised in the limits of deviation shown on the deposited plans and may for any reasonable time prevent all persons other than those bona fide going to or coming from any land house or building in the street or road or part of a street or road so stopped up from passing along and using the same.

(2) The Board shall provide reasonable access for vehicles and foot passengers bona fide going to or coming from any such land house or building.

(3) The Board shall not temporarily stop up or interfere with any street or road in the city except with the consent of the Stoke Corporation and subject to such terms and conditions as that corporation may reasonably impose but such consent shall not be unreasonably withheld and any question as to whether in any case such terms and conditions are unreasonable or as to whether such consent is unreasonably withheld shall be determined by arbitration.

(4) The Board shall not exercise the powers of this section so as to prevent reasonable access for foot passengers and vehicular traffic bona fide going to or from any railway station or depot of any railway undertaking.

(5) The powers of this section shall not be exercised in relation to any trunk road except with the prior consent of the Minister of Transport.

15. Subject to the other provisions of this Act the Board may for the purposes of and in connection with the waterworks and within the limits of deviation for such works shown on the deposited plans raise sink or otherwise alter the position of or may remove any sewer drain gas or water main or pipe or electric line or any other obstruction of a like nature making in

PART III
—cont.

case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration or removal:

Provided that—

(a) the powers of this section so far as they relate to works of a local authority (including a county council) shall not be exercised unless such exercise is reasonably necessary and any question as to whether or not the same is reasonably necessary shall be referred to arbitration;

(b) nothing in this section shall extend to authorise any interference with any works of any electricity board within the meaning of the Electricity Act 1947 to which the provisions of section 15 of the Electric Lighting Act 1882 and sections 17 and 18 of the schedule to the Electric Lighting (Clauses) Act 1899 apply otherwise than in accordance with such provisions; and

(c) the Board shall not raise sink or otherwise alter the position of any telegraphic line (as defined in the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and in accordance with the enactments numbered (1) to (8) in section 7 of the said Telegraph Act 1878.

10 & 11 Geo. 6.
c. 54.
45 & 46 Vict.
c. 56.
62 & 63 Vict.
c. 19.

41 & 42 Vict.
c. 76.

Power to divert
streams &c.

16.—(1) It shall be lawful for the Board to divert and alter the course of any stream watercourse or ditch on any lands acquired or appropriated by them for the purposes of the waterworks and the existing bed banks and channel of the diverted portion of such streams watercourses and ditches shall by virtue of this Act vest in the Board and may be appropriated and used by the Board for the purposes of or in connection with those works.

(2) Nothing in this section or done by the Board thereunder shall in any way alter or affect the boundary between any local areas formed by any such stream watercourse or ditch as aforesaid but such boundary shall continue as if the stream watercourse or ditch forming the same had not been diverted and this Act had not been passed.

(3) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for damage sustained by them or any liability to which they may become subject by reason of the exercise of those powers. Any difference as to the amount of the compensation to be paid shall be referred to and determined by an arbitrator.

(4) Before diverting or altering any stream watercourse or ditch in or flowing through the county of Stafford which forms the boundary between the areas of any local authorities the Board shall record upon a plan the course of that stream and the intended diversion or alteration thereof and shall deposit such plan at the Board's head office and the said plan shall be open at all times to inspection by any person interested in the stream diverted or altered who shall be entitled without payment of a fee to make copies of the said plan.

(5) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other provision of this Act relating to the diversion of streams watercourses or ditches.

(6) The powers of this section shall not be exercised so as to damage or injuriously affect the railways canals or works of the commission.

(7) It shall not be lawful for the Board to exercise the powers conferred by this section in relation to any stream watercourse or ditch in the city otherwise than in compliance with the provisions of section 59 (Streams not to be covered over obstructed or diverted except in accordance with plans) of the Stoke-on-Trent Corporation Act 1923.

13 & 14 Geo. 5.
c. cvii.

17. If the waterworks are not completed on or before the expiration of ten years from the first day of October one thousand nine hundred and forty-nine then as from the date of such expiration the powers by this Act granted to the Board for the making of the said works or otherwise in relation thereto shall cease except as to so much thereof respectively as is then completed: Period for completion of waterworks.

Provided that the Board may at any time and from time to time alter reconstruct renew or remove the said works and in the case of the aqueducts conduits or lines of pipes so authorised may lay down additional aqueducts conduits or lines of pipes as and when occasion may require.

18. Subject to the provisions of this Act and after the completion of Work No. 1 by this Act authorised the Board may Power to take waters. for the purposes of the undertaking collect impound take use divert and appropriate by means of the waterworks all such waters of the river Churnet and its tributaries and other rivers streams brooks and springs as are or will or may be intercepted by Deep Hayes reservoir and Tittesworth reservoir and those works or any of them:

Provided that the Board shall not collect impound take use divert or appropriate any waters by means of either of the intakes Works Nos. 5 and 6 by this Act authorised unless and

PART III
—cont.

until they have commenced to discharge compensation water from the Tittesworth reservoir pursuant to subsection (1) of section 20 (Provisions as to compensation water) of this Act.

As to abstraction of water from tributaries of river Churnet at Solomon's Hollow.

19.—(1) The Board shall not at any time except with the consent of the fishery board for the fishery district of the river Trent take any water from the tributaries of the river Churnet at Solomon's Hollow or either of them in which Works Nos. 5 and 6 authorised by this Act shall have been constructed respectively unless the total quantity of water from the said tributaries flowing directly at that time into the river Churnet is at a rate exceeding four hundred thousand gallons per day of twenty-four hours.

(2) For the purpose of gauging the total quantity of water from the said tributaries flowing into the river Churnet the Board shall construct and maintain in good order approved gauges on approved sites and the provisions of subsection (2) (except paragraph (b) and so much of the said subsection as relates to that paragraph) of section 20 (Provisions as to compensation water) of this Act shall apply *mutatis mutandis* to the Board in respect of such gauges and the inspection and examination thereof and any records made thereby and the taking of copies of such records.

(3) In this section and in the said subsection (2) of the said section of this Act so applied the expression "gauge" includes a gauge weir or other apparatus for measuring the flow of water and the expression "approved" means approved by the Minister and for the purposes of this section the said fishery board shall be deemed to be interested in the flow of water from the said tributaries into the river Churnet.

Provisions as to compensation water.

20.—(1) After the completion of Work No. 1 by this Act authorised the Board shall at points seven hundred yards in the case of the Tittesworth reservoir (Work No. 1 by this Act authorised) and two hundred yards in the case of the Deep Hayes reservoir (Work No. 11 by this Act authorised) measured downstream from the centre of the existing embankment of each such reservoir discharge from such reservoirs during every day of twenty-four hours reckoned from midnight in a uniform and continuous flow a total quantity of water not less than four million two hundred and fifty thousand gallons and for the purpose of gauging and recording such discharge they shall construct and maintain in good order approved gauges together with continuous automatic recorders on approved sites:

Provided always that of the said daily quantity of four million two hundred and fifty thousand gallons of water not less than three million two hundred and fifty thousand gallons shall be so discharged from the Tittesworth reservoir.

(2) If the Board—

(a) fail to construct or maintain in good order any such gauge as aforesaid or refuse to allow any person interested to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records; or

(b) fail to comply with the requirements of subsection (1) of this section with respect to the discharge of water;

they shall without prejudice to their civil liability (if any) to a person aggrieved be liable in the case of an offence under paragraph (a) of this subsection to a fine not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued and in the case of an offence under paragraph (b) of this subsection—

(i) on summary conviction to a fine not exceeding fifty pounds in respect of each such day; and

(ii) on conviction on indictment to a fine not exceeding five hundred pounds in respect of each such day.

(3) In this section the expression “gauge” includes a gauge weir or other apparatus for measuring the flow of water and the expression “approved” means approved by the Minister and for the purposes of this section a catchment board a fishery board a rivers board and a navigation authority the Leek Urban District Council and the owners and occupiers of mills whose names are set out in the First Schedule to this Act shall be deemed to be interested in the flow of water in and the discharge of water into any stream within their area or district or as the case may be forming part of their system of navigation or any stream feeding such a stream or any part of that system and shall be deemed to be aggrieved by the commission of an offence under this section in relation to any such stream.

(4) Subject to the provisions of section five of the Criminal Justice Administration Act 1914 any fine recovered under this section on the complaint of a fishery board or of an officer of or person authorised by a fishery board shall as to the whole or such part thereof as the court may determine be paid to the fishery board in respect of the costs of the prosecution. 4 & 5 Geo. 5. c. 58.

(5) As from the completion of Work No. 1 by this Act authorised the provisions of the Acts which are set out in the Second Schedule to this Act are hereby repealed:

Provided that section LXVI (Company to make good damages occasioned by failure of their works) of the Act of 1853 and section 43 (Company to make compensation for damage done by bursting of reservoirs) of the Act of 1868 so

PART III
—cont.

far as they relate to the Deep Hayes reservoir shall not be repealed until the completion of Work No. 11 by this Act authorised.

Works to be
part of
undertaking.

21. The waterworks shall be deemed part of the undertaking.

For protection
of British
Electricity
Authority and
Midlands
Electricity
Board.

22. For the protection of the British Electricity Authority and the Midlands Electricity Board (each of which is in this section referred to as "the electricity board") the following provisions shall unless otherwise agreed in writing between the Board and the electricity board apply and have effect with respect to the exercise of the powers of this Act:—

(1) In this section—

"apparatus" means all or any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity board:

(2) The Board shall not be entitled to acquire any apparatus or any such interest easement or right in any lands in under over or across which the electricity board possess an easement or right of constructing or maintaining any apparatus as would prevent or unreasonably interfere with the enjoyment or exercise by the electricity board of the easement or right so possessed by them:

(3) Where the Board require to alter the position of or interfere with any apparatus the provisions of section 15 of the Electric Lighting Act 1882 and of section 17 of the schedule to the Electric Lighting (Clauses) Act 1899 shall (mutatis mutandis and subject to the provisions of subsection (5) of this section) apply in relation to such alteration or interference whether or not such apparatus is under a street or place authorised to be broken up by the Board and shall be deemed to extend to any apparatus laid down erected or constructed upon or above the level of the ground and the Board shall not alter the position of or interfere with any apparatus except in accordance with and subject to the said provisions as applied and extended as aforesaid:

(4) The Board shall not carry out any work authorised by this Act near to which any apparatus has been lawfully placed except in accordance with and subject to the provisions of section 18 of the schedule to the Electric Lighting (Clauses) Act 1899:

Provided that for the purposes of this subsection section 18 shall have effect as if the words "fourteen days" were substituted for the words "three days" in subsection (1) thereof:

- (5) Any difference which may arise between the Board and the electricity board under this section or under section 15 of the said Act of 1882 or section 17 of the schedule to the said Act of 1899 as respectively applied or extended by this section or under section 18 of the said schedule shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

23. The Postmaster-General (without derogation from any other right vested in him) may alter or remove any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by him which will be submerged wholly or partly by reason of or which it may be reasonably necessary to alter or remove in consequence of the waterworks and the Board shall pay to the Postmaster-General the expenses incurred by him of and incidental to the alteration of the telegraphic line or the removal thereof and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require. For protection of Postmaster-General.

24. The provisions of section 33 (For protection of London Midland and Scottish Railway Company) of the Act of 1937 shall extend and apply to the powers conferred and the works authorised by this Act and to the commission in relation thereto and for the purposes of this section references in the said section 33 to "the Company" shall have effect as references to the commission and the reference to section 21 of the Act of 1937 shall have effect as a reference to section 10 (Power to acquire easements only) of this Act and references to "the principal engineer" shall have effect as references to an engineer to be appointed by the commission. For protection of British Transport Commission.

25.—(1) In the construction and maintenance of the Tittesworth reservoir (Work No. 1) and the Deep Hayes reservoir (Work No. 11) by this Act authorised the Board shall consult with the local planning authority before commencing the construction of the said reservoirs or either of them or any other structures buildings fences walls or embankments comprised in or erected in connection therewith as to— For preservation of amenities.

- (a) the surface treatment of the downstream face of the enlarged dams of the said reservoirs or either of them ;
- (b) the design elevation appearance and siting of any such other structures or buildings ; and

PART III
—cont.

(c) the elevation material and appearance of any such fences walls or embankments (other than the said dams or either of them).

(2) The local planning authority shall make recommendations with respect to the matters aforesaid either by way of approval or modification of the proposals of the Board and may at any time and from time to time make recommendations as to the steps to be taken to preserve the view or beauty of any rural scenery and the amenities of the parishes of Leekfrith and Tittesworth in the rural district of Leek and the parish of Cheddleton in the rural district of Cheadle and the surrounding countryside and the Board shall adopt such recommendations:

Provided that if the Board are unwilling to adopt such recommendations or any of them the matter in dispute shall be referred to the Royal Fine Art Commission and in that event the recommendations of that commission shall be adopted by the Board except in so far as such last-mentioned recommendations would be detrimental to the undertaking.

(3) Any dispute between the Board and the local planning authority as to whether any such last-mentioned recommendations would or would not be detrimental to the undertaking shall be referred to and determined by a single arbitrator to be appointed on the application of either party to the dispute after notice to the other of them by the President of the Institution of Water Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

(4) After any of the matters aforesaid has been determined in the manner hereinbefore provided the Board may from time to time submit to the local planning authority a revised proposal with respect to such matter and thereupon the matter shall be determined in the same manner as the original proposal.

(5) If the local planning authority do not communicate to the Board within a period of two months from the receipt of a proposal their recommendations with respect thereto they shall be deemed to have made a recommendation in the terms of the proposal.

For protection
of Stoke
Corporation.

26. For the protection of the Stoke Corporation the following provisions shall unless otherwise agreed between the Board and the Stoke Corporation apply and have effect (that is to say):—

(1) Before the Board in the exercise of the powers of section 15 (Alteration of position of mains &c.) of this Act alter the position of or execute any work which would interfere with or endanger any sewer or drain belonging to the Stoke Corporation (all of which sewers and drains are in this section included in the expression

“ apparatus ”) they shall (except in cases of emergency) give to the Stoke Corporation notice of the intention to do so specifying the time at which the Board will begin to do so such notice to be given except in case of emergency fourteen days at least before the commencement of the work and such work shall be done at the expense of the Board under the superintendence of the Stoke Corporation unless they refuse or neglect to give such superintendence at the time specified in the notice for the commencement of such work or discontinue the same during the execution of such work and the Board shall execute such work to the reasonable satisfaction and in accordance with the reasonable directions of the engineer of the Stoke Corporation :

- (2) If within seven days of the receipt of such notice the Stoke Corporation shall give notice to the Board of their desire themselves to execute any such work of alteration they shall forthwith proceed to do so and the cost reasonably incurred by them in so doing shall be paid to them by the Board :

Provided that such alterations shall be carried out in accordance with the directions and to the reasonable satisfaction of the Board :

- (3) If any difference arises between the Board and the Stoke Corporation touching the amount of any expenses or costs under the provisions of this section to be paid by the Board to the Stoke Corporation or touching any work matter or thing to be done or executed by the Board with reference to such apparatus or the mode of doing or executing the same such difference shall unless otherwise agreed be settled by arbitration.

27. For the protection of the West Midlands Gas Board (in this section referred to as “ the gas board ”) the following provisions shall unless otherwise agreed between the Board and the gas board apply and have effect (that is to say):—

For protection
of West
Midlands
Gas Board.

- (1) Where the Board under the powers of section 14 (Temporary stoppage of streets) of this Act stop up temporarily any street in which any mains pipes or other works belonging to the gas board (in this section referred to as “ apparatus ”) are situate they shall provide reasonable access for the officers servants and workmen of the gas board for the purpose of enabling them to inspect repair and renew any such apparatus or to lay or place new apparatus :

PART III
—cont.

(2) Before the Board in the exercise of the powers of section 15 (Alteration of position of mains &c.) of this Act alter the position of or execute any work which would interfere with or endanger any apparatus they shall (except in case of emergency) give to the gas board notice of the intention to do so specifying the time at which the Board will begin to do so such notice to be given (except in case of emergency) fourteen days at least before the commencement of the work and such work shall be done at the expense of the Board under the superintendence of the gas board unless they refuse or neglect to give such superintendence at the time specified in the notice for the commencement of such work or discontinue the same during the execution of such work and the Board shall execute such work to the reasonable satisfaction and in accordance with the reasonable directions of the gas board:

(3) If within seven days of the receipt of such notice the gas board shall give notice to the Board of their desire themselves to execute any such work of alteration they shall forthwith proceed to do so and the cost reasonably incurred by them in so doing shall be paid to them by the Board:

Provided that such alteration shall be carried out in accordance with the directions and to the reasonable satisfaction of the Board.

(4) If any difference arises between the Board and the gas board as to the amount of any expenses or costs under the provisions of this section to be paid by the Board to the gas board or as to any work matter or thing to be done or executed by the Board with reference to any apparatus or the mode of doing or executing the same such difference shall be settled by arbitration.

For protection
of occupiers of
land adjoining
river Churnet.

28.—(1) If at any time after the passing of this Act the occupier of any lands abutting on the river Churnet below the dam of the Tittesworth reservoir shall by notice in writing to the Board require the Board so to do the Board shall to the reasonable satisfaction of such occupier erect along the bank of so much of the river Churnet as adjoins those lands or such part of that bank as may be specified in the said notice and thereafter at all times maintain a suitable fence for preventing cattle from straying from the said lands into or watering from the said river and for the purpose of enabling the Board to erect any such fence such occupier shall permit the Board at all reasonable times to enter upon the lands occupied by him and to execute and do thereon all such works and things as may be reasonably necessary for that purpose:

Provided that the provisions of this subsection shall not apply if the degree of pollution in the said river adjoining the lands of such occupiers does not increase by reason of the operations of the Board beyond the degree of pollution as existing before the construction of the waterworks.

(2) (a) The Board shall forthwith after the passing of this Act and before they commence the construction of the waterworks or any of them and from time to time after the commencement of such construction cause analyses of the water in the said river and gaugings of the flow of water therein to be made for the purpose of determining the degree of pollution in the said river respectively before the commencement of the construction of the waterworks and at any time thereafter.

(b) The said analyses and the gaugings shall be made at such times in such manner and at such places as may be agreed between the Board and the National Farmers' Union or in default of agreement determined by arbitration as hereinafter provided.

(c) The Board shall keep records of all such analyses and gaugings and such records shall be open to inspection at all reasonable times by any duly authorised representative of the National Farmers' Union who shall be entitled free of charge to take or to be supplied with copies of all or any of such records.

(3) If the degree of pollution in the said river adjoining the lands of any such occupier as aforesaid shall by reason of the operations of the Board be increased beyond the degree of pollution as existing before the commencement of the construction of the waterworks then such occupier whether or not he shall require the Board to erect any such fence as is referred to in subsection (1) of this section may by notice in writing to the Board require the Board to afford and the Board shall accordingly afford to such occupier a supply of pure and wholesome water sufficient for the needs of such occupier for agricultural purposes at such a point or points and at such a price as may be agreed upon between the Board and such occupier or in default of agreement determined by arbitration as hereinafter provided:

Provided that the Board shall not by virtue of the provisions of this subsection be required to afford a supply of water to any occupier unless they are empowered (by statute or otherwise) to afford such a supply and it is reasonably practicable in any case so to do:

Provided also that in determining any such price as aforesaid the arbitrator shall have regard to the quantity and quality of the water previously available for the use of or obtained by such occupier.

PART III
—cont.

(4) Any dispute (other than a dispute as to the meaning or construction of this section which does not arise in the course of the arbitration) which may arise under this section between the Board on the one hand and the National Farmers' Union or any such occupier as aforesaid on the other hand shall be referred to and determined by a single arbitrator to be agreed upon by the parties in difference or in default of such agreement to be appointed on the application of either party after notice to the other of them by the Minister and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

For supply of water to occupiers of land through which aqueducts 10 13 and 17 pass.

29.—(1) The Board shall afford to the occupier of any lands through which the aqueducts Works Nos. 10 13 and 17 shall pass at his request a supply of pure and wholesome water reasonably sufficient for the needs of such occupier for agricultural purposes at such point or points and at such price and on such conditions as may be agreed upon between the Board and such occupier or in default of agreement determined by arbitration as hereinafter provided.

(2) An occupier so requesting a supply of water shall at his own expense provide lay and maintain any necessary service pipe and meter and shall bear the cost of connecting such pipe with the aqueduct from which the supply to him is to be afforded.

(3) Notwithstanding the foregoing provisions of this subsection the Board shall not be obliged to afford any such supply of water as is in this section mentioned unless the point on the consumer's premises at which the supply is afforded is not less than 35 feet below the level of the outlet of the reservoir from which the supply is taken.

For protection of River Trent Catchment Board.

30. For the protection of the River Trent Catchment Board the provisions of section 38 (For protection of River Trent Catchment Board) of the Staffordshire Potteries Water Board Act 1937 shall extend and apply to the exercise of the powers of this Act as if those provisions were with all necessary modifications specifically re-enacted in this Act and made applicable thereto and as if any of the waterworks were an authorised work within the meaning of that section.

For protection of Britains Limited and Thomas Bolton & Sons Limited.

31. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of Britains Limited and Thomas Bolton and Sons Limited (each of whom is hereinafter in this section referred to as "the company") shall unless otherwise agreed in writing between the Board and the company apply and have effect (that is to say):—

(1) In this section "the said reservoirs" means the Tittesworth reservoir (Work No. 1 by this Act authorised)

and the Deep Hayes reservoir (Work No. 11 by this Act authorised) or either of them:

PART III
—cont.

- (2) (a) The Board shall keep the records obtained from the continuous automatic recorders referred to in section 20 (Provisions as to compensation water) of this Act;

(b) The intervals referred to in section 3 of the Reservoirs (Safety Provisions) Act 1930 shall in relation to the said reservoirs be daily intervals:

20 & 21 Geo. 5.
c. 51.

- (3) The Board shall—

(a) provide reasonable means of access to the gauges referred to in the said section 20 and any gauges provided for the purposes of the said section 3 of the Reservoirs (Safety Provisions) Act 1930 and to the records obtained from all such gauges; and

(b) permit the representatives of the company to use such means of access and to inspect the said gauges and records at any time:

- (4) For the purpose of the exercise by the Board of the powers of section 34 of the Water Act 1945 in relation to the said reservoirs the company shall be deemed to be owners of land which abuts on the river Churnet at a point within three miles of the said reservoirs:

- (5) Any difference arising between the Board and the company under the foregoing provisions of this section (other than a difference as to the meaning or construction thereof) shall be determined by arbitration:

- (6) The Board shall pay compensation to the company for any damage or injury which the company may sustain by reason or in consequence of the bursting or failure of the said reservoirs or by reason or in consequence of any act or omission of the Board in relation to the said reservoirs.

The amount of such compensation shall in case of dispute be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

32.—(1) Notwithstanding anything contained in this Act the provisions of section 31 (For protection of Britains Limited and Thomas Bolton & Sons Limited) of this Act shall unless otherwise agreed in writing between the Board and the owners and occupiers of mills whose names are hereinafter in this section set out extend and apply for the protection of those owners and occupiers as if they were referred to in the said section 31 and as if the words “or by reason or in consequence of any act or omission of the Board in relation to the said reservoirs” were omitted from subsection (6) of the said section.

For protection
of certain
millowners.

PART III
—cont.

(2) The owners and occupiers above referred to are W. Podmore and Sons Limited J. C. Staton and Company Limited George Edwards and William Edwards.

For protection
of William
Tatton &
Company
Limited.

33. The following provisions for the protection of William Tatton and Company Limited or other the owner or owners for the time being of the Upper Hulme Mill in the parish of Leek-frith (in this section referred to as "the company") shall apply and have effect unless otherwise agreed in writing between the Board and the company:—

- (1) Before collecting impounding taking using diverting or appropriating any of the waters of the river Churnet or any of its tributaries under the powers of this Act the Board shall construct the sewage disposal works and intercepting drain (Work No. 4) authorised by section 11 (Power to make works) of this Act of such capacity and efficiency and at such level as to be capable of receiving by gravity and dealing with all the effluent from time to time discharged from the company's works at Upper Hulme alongside a tributary of the river Churnet and thereafter the Board shall be solely responsible for the treatment of the said effluent:

Provided that all such effluent from time to time discharged from the said works shall so far as may be reasonably practicable continue to be passed through the company's own treatment plant:

- (2) The Board shall not under the powers of this Act enter upon take or use the lands belonging to the company and numbered 3 in the parish of Heathylee on the deposited plans nor acquire any easement or right therein.

For protection
of Staffordshire
County
Council.

34. The following provisions for the protection of the county council of the administrative county of Stafford (in this section respectively referred to as "the county council" and "the county") shall unless otherwise agreed in writing between the Board and the county council have effect:—

- (1) (a) The diversion of the road from Meerbrook to Upper Hulme (Work No. 2) by this Act authorised and any bridge or culverts necessary to carry the said road as diverted over the Tittesworth reservoir shall be constructed with such materials and in such manner and in accordance with such detailed plans sections and specifications as shall be reasonably approved by the surveyor to the county council (hereinafter referred to as "the county surveyor");

(b) The said road as diverted shall be constructed of a uniform width throughout of not less than forty feet between the fences thereof and a carriageway not less than eighteen feet wide and grass verges on either side of the carriageway and a footpath not less than six feet wide on one side of the said road. The Board shall also construct all such gullies drains and outfalls as shall be reasonably required by the county surveyor for effectively draining and carrying off the surface water from the said road:

(2) When the diversion of the said road shall have been constructed and completed in accordance with the provisions of this section and open for traffic—

(a) the Board shall at all times thereafter maintain and repair the embankments walls and fences thereof and the structure walls and fences of any such bridge or culverts to the reasonable satisfaction of the county surveyor;

(b) the county council shall thereafter maintain and repair the surface of the roadway between the fences:

Provided that in the event of the said road at any time subsiding or becoming out of alignment owing to the settlement of or damage to the embankments the Board shall make good such subsidence or settlement and shall bear the cost incurred by the county council in the restoration of the said road to its original level or alignment:

(3) The Board shall to the reasonable satisfaction of the county surveyor during the diversion of the said road make and maintain such provision for the safe and convenient passage of traffic along the existing road as the county surveyor may reasonably require:

(4) Notwithstanding anything contained in this Act or shown on the deposited plans the Board shall not construct the diversion of the existing road from Meerbrook to Abbey Green (Work No. 3) by this Act authorised on the line shown on the deposited plans but on such line and in accordance with such plans as may be reasonably approved by the county surveyor. Such last-mentioned plans shall provide for the drainage of the said road as diverted and for proper junctions being made by the Board to any county road crossed or otherwise affected by the said work:

(5) Notwithstanding anything contained in this Act or shown on the deposited plans the Board shall not construct the intercepting drain comprised within Work No. 4 by this Act authorised within forty feet of any part

PART III
—cont.

of the parapet of the bridge at Upper Hulme carrying the road from Leek to Buxton over the river Churnet:

- (6) The Board shall not in the exercise of the powers in this Act interfere with the structure of any bridge or of the approaches thereto or any culvert, repairable by or under the control of the county council:
- (7) Notwithstanding anything contained in section 14 (Temporary stoppage of streets) of this Act the Board shall not stop up any county road or any part thereof to a greater extent at any one time than one half of the width thereof:
- (8) The Board shall not under the powers of this Act construct across or affecting or raise sink or otherwise alter the position of or remove any watercourse drain pipe or ditch constructed for or affecting the drainage of any highway except in accordance with plans sections and specifications previously submitted to and reasonably approved by the county surveyor and the county surveyor in giving his approval to any such plans sections and particulars may attach thereto such reasonable requirements including requirements as to the construction of temporary or substituted watercourses drains pipes or ditches as he may think fit:
- (9) All works which pursuant to the provisions of this section are to be constructed by the Board in accordance with plans sections and specifications to be reasonably approved by the county surveyor shall be constructed under the superintendence and to the reasonable satisfaction of the county surveyor:
- (10) Any dispute or difference which may arise between the county council or the county surveyor on the one hand and the Board on the other hand under this section shall be settled by arbitration.

PART IV

EXTENSION OF LIMITS OF SUPPLY AND ALTERATION OF
CONSTITUTION OF BOARD

Extension of
limits of
supply.

35.—(1) The limits within which the Board may supply water shall be extended so as to include the added limits.

(2) Subject to the provisions of this Act and to the provisions of the Stone agreement the Board shall have and may exercise with reference to the added limits all and the like powers privileges and authorities for and in relation to the supply of water and the construction of works and be subject to all and the like duties and obligations in respect thereof as they have and are subject to under the Staffordshire Potteries Water Board

Acts 1853 to 1937 and this Act with reference to the existing limits and any conditions of supply relating to the undertaking made by the Board which are in force in the existing limits shall extend and apply to and within the added limits and may be enforced by the Board:

Provided that nothing contained in this subsection shall prevent any amendment variation rescission or revocation of the said conditions of supply.

(3) (i) Any works pipes plant or apparatus belonging to the council of any county district comprised wholly or in part within the added limits provided by such council for the purpose of supplying water within such limits shall vest in the Board as from the date on which the Board commence to supply water in so much of the added limits as comprises that district or part thereof and the Board shall pay to the council of any such county district other than the urban district of Stone in respect of such works pipes plant or apparatus such sum as may be agreed between the Board and such council or in default of agreement determined by an arbitrator appointed by the Minister.

(ii) For the purposes of section 12 of the Finance Act 58 & 59 Vict. 1895 (which relates to stamp duty on the vesting of property by virtue of an Act of Parliament) the date of the final ascertainment of the amount of the consideration for the vesting under the preceding paragraph of this subsection of the property other than goods shall be treated as the date of vesting.

(iii) Section 44 (Compensation to officers of statutory water undertakers) of the Water Act 1945 shall apply to any person who immediately before the date on which the Board commence to supply water in any part of the added limits comprised in any such county district as is referred to in paragraph (i) of this subsection was an officer or servant of the council of such county district as if this Act was an order made under the Water Act 1945 and as if the date on which the Board commence to supply water as aforesaid was the date of operation of such order.

(4) Section 14 (Extension of limits of water supply) of the Act of 1888 the first proviso to section 28 (Definition of limits of supply) of the Act of 1924 and Part II of the Fourth Schedule to that Act subsection (2) of section 5 (Redefinition of limits of supply &c.) of the Act of 1937 and Part II of the Second Schedule to that Act so far as they refer or relate to the urban district of Stone the parish of Talke in the urban district of Kidsgrove the parishes of Ashley Audley Rural Chapel and Hill Chorlton Keele Madeley Maer and Whitmore in the rural district of Newcastle-under-Lyme and the parishes of Barlaston Eccleshall Fulford Hilderstone Sandon Standon Stone Rural and Swynnerton in the rural district of Stone are hereby repealed.

PART IV
—cont.

(5) Section 44 (For the protection of the London and North Western Railway Company) of the Act of 1888 shall in its application to the added limits extend and apply to all railways canals lands and property of the commission whether formerly belonging to or used or occupied by the London and North Western Railway Company or not and for the purposes of this section references in the said section 44 to "the railway company" shall have effect as references to the commission and references to "the principal engineer of the said railway company" shall have effect as references to an engineer to be appointed by the commission.

Alteration of
constitution
of Board.

36.—(1) As from the fifteenth day of May nineteen hundred and fifty the constitution of the Board shall be as follows:—

Fifteen members to be appointed by the Stoke Corporation ;
Seven members to be appointed by the Newcastle Corporation ;

One member to be appointed by each of the urban district councils of Kidsgrove and Stone respectively ;

Two members to be appointed by each of the rural district councils of Newcastle-under-Lyme and Stone respectively ;

One member to be appointed by the county council.

(2) Subsection (3) of section 5 (Establishment of Board) of the Act of 1924 shall thereupon be repealed.

Transfer of
Stone
undertaking
to Board.

37.—(1) The Stone agreement is hereby confirmed and made binding on the parties thereto respectively.

(2) In this section the expression "the date of transfer" has the same meaning as in the Stone agreement.

(3) The Stone undertaking shall be and is by virtue of this Act as from the date of transfer transferred to and vested in the Board upon the terms and conditions set forth in that agreement and subject to the provisions of that agreement the same shall as from the date of transfer become part of the undertaking.

(4) Any action arbitration or other proceeding and any cause of action arbitration or proceeding pending or existing on the date of transfer by or against or in favour of the Stone Council in relation to the Stone undertaking shall not abate or be discontinued or in any wise prejudicially affected by reason of the transfer of the Stone undertaking to the Board or of anything in this Act or the Stone agreement but may be continued prosecuted and enforced by against or in favour of the Board as and when it might have been continued prosecuted and

enforced by against or in favour of the Stone Council if this Act had not been passed and the Stone agreement had not been confirmed but not further or otherwise:

PART IV
—cont.

Provided that any water rate rent or charge or other money payable to the council before the date of transfer may be sued for and recovered by the council after the transfer in the same manner in all respects as it might have been sued for and recovered if this Act had not been passed and the Stone agreement had not been confirmed.

(5) Subject to the provisions of the Stone agreement all contracts agreements conveyances deeds leases licences and instruments affecting the Stone Council in respect of the Stone undertaking and in force at the date of transfer (other than the Stone agreement) shall as from that date be as binding and of as full force and effect against or in favour of the Board as if instead of the council the Board had been a party thereto or bound thereby or entitled to the benefit thereof but nothing in this Act or the Stone agreement or done thereunder shall prejudice or affect the right of the Board to terminate any such contract agreement deed lease licence or instrument at such time and in such manner as it might have been terminated if this Act had not been passed and the Stone agreement had not been confirmed.

(6) The consideration money received by the council in respect of the Stone undertaking in pursuance of the provisions of the Stone agreement shall be applied in such manner as the Minister may approve in discharge of any debt of the council or otherwise to any purposes for which capital money may properly be applied.

(7) The provisions of section 44 (Compensation to officers of statutory water undertakers) of the Water Act 1945 shall apply with respect to any person who immediately before the date of transfer was an officer or servant of the Stone Council employed wholly or partly in connection with the Stone undertaking as if this section were an order made under that Act and any compensation payable thereunder shall be paid by the Board.

PART V

FINANCE AND MISCELLANEOUS

38.—(1) The Board may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as the Board may determine not

Power to
Board to
borrow.

PART V
—cont.

exceeding those mentioned in the third column of the said table (namely):—

1 Purpose	2 Amount	3 Period for repayment
	£	
(a) For the construction of the water-works other than the aqueducts authorised by this Act—		
(i) the enlargement of reservoirs (Work No. 1 and Work No. 11)	709,700	Sixty years from the date or dates of borrowing.
(ii) service reservoirs— Work No. 12 and Work No. 18	220,000	Fifty years from the date or dates of borrowing.
Work No. 15	61,600	Forty years from the date or dates of borrowing.
Work No. 24 Work No. 29 and Work No. 33	142,950	Thirty years from the date or dates of borrowing.
(iii) pressure filters	72,500	Twenty years from the date or dates of borrowing.
(iv) pumping machinery and sterilization plant	11,500	Fifteen years from the date or dates of borrowing.
(v) other works	123,250	Forty years from the date or dates of borrowing.
(b) For the construction of the aqueducts authorised by this Act—		
(i) steel mains of less than 36 inches in diameter	470,000	Thirty-five years from the date or dates of borrowing.
(ii) other mains	411,200	Forty years from the date or dates of borrowing.
(c) For the purchase of lands and easements for and in connection with the waterworks	98,300	Sixty years from the date or dates of borrowing.
(d) For the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The periods mentioned in the third column of the foregoing table shall as respects any money borrowed under this section respectively be the fixed period for the purposes of Part IX (Borrowing) of the Local Government Act 1933 as applied to the Board.

Saving for
powers of
Treasury.

39. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the powers of borrowing to pay the costs charges and expenses of this Act as hereinafter

defined) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART V
—cont.

9 & 10 Geo. 6.
c. 58.

40. The time for completing the new waterworks authorised by the Act of 1937 is hereby extended until the thirtieth day of July nineteen hundred and fifty-three.

Extension of
time for
completion of
waterworks
authorised in
1937.

41. Subject to the provisions of this Act section 81 (Incorporation of sections 123 266 and 277 of Local Government Act 1933 and section 265 of Public Health Act 1875) of the Act of 1937 shall extend and apply to the exercise of the powers of this Act as if the same with the necessary modifications were re-enacted in this Act.

Application of
provisions of
Act of 1937.

42. Any certificate of appointment or authority of any officer servant solicitor or agent of the Board or of any committee thereof or any minute resolution order or report of the Board or any committee thereof purporting to be authenticated by the signature of the chairman of the Board or of the clerk shall be received as prima facie evidence thereof without further proof.

Evidence of
appointments
authority &c.

43. Where under this Act any question dispute or matter is to be referred to or settled by arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the question dispute or matter shall be referred to an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

Arbitration.

44. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this Act and section 290 of the Local Government Act 1933 shall apply accordingly.

Inquiries by
Minister.

45. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for
town and
country
planning.

46. All powers rights and remedies given to the Board by this Act shall be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by Act of Parliament law or custom and the Board may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed.

Powers of Act
cumulative.

PART V
—cont.

Crown rights. 47. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act. 48. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid out of the revenues of the Board or out of moneys to be borrowed under this Act for the purpose.

The SCHEDULES referred to in the foregoing Act

THE FIRST SCHEDULE

OWNERS AND OCCUPIERS OF MILLS REFERRED TO IN SUBSECTION (3) OF
SECTION 20 (PROVISIONS AS TO COMPENSATION WATER) OF THIS ACT

Name	Registered office or address
Brittains Limited	Ivy House Paper Mills Hanley Stoke-on-Trent.
William Tatton and Company Limited	Buxton Road Leek Staffordshire.
Sir Thomas & Arthur Wardle Limited	Churnet Works Leek Stafford- shire.
Wardle and Davenport Limited	Belle Vue Leek Staffordshire.
Geo. Davenport Adams and Company Limited	Hope Silk Mills Leek Stafford- shire.
Brough Nicholson and Hall Limited	4B Fredericks Place Old Jewry in the City of London.
W. Podmore & Sons Limited	Caledonian Mills Shelton Stoke- on-Trent.
J. C. Staton and Company Limited	Bridge Street Tutbury Stafford- shire.
George Edwards	Gratton View Werrington Road Bucknall Stoke-on-Trent.
William Edwards	Wellington House Werrington Road Bucknall Stoke-on- Trent.
Thomas Bolton and Sons Limited	Mersey Copper Works P.O. Box No. 3 Widnes Lancashire.

THE SECOND SCHEDULE

PROVISIONS REFERRED TO IN SUBSECTION (5) OF SECTION 20
(PROVISIONS AS TO COMPENSATION WATER) OF THIS ACT

The Act of 1853—

- Section LII (Existing compensation reservoir to be maintained).
- Section LXV (Power to owners of mills &c. to require reservoirs to be examined and if found defective to have them repaired).
- Section LXVI (Company to make good damages occasioned by failure of their works).
- Section LXVIII (As to appointment and removal of mill owners' engineer).
- Section LXIX (Charges of mill owners' engineer to be defrayed by the company).
- Section LXXII (General saving of rights).

The Act of 1861—

- Section 27 (Compensation reservoirs).
- Section 28 (Company may abstract 1,500,000 gallons per diem).
- Section 29 (Present compensation reservoirs to be regulated by mill owners).
- Section 30 (Company relieved from obligations as to compensation water).
- Section 31 (Drove mill owners to attend mill owners' meetings).
- Section 32 (Powers of mill owners to be exercised at meetings).
- Section 33 (Appointment of mill owners' engineer).
- Section 35 (Regulation of gauges of the reservoirs).
- Section 36 (Power to mill owners to control and examine counter).
- Section 37 (Power to abstract further water).
- Section 38 (Company may require certificate of completed storage works).
- Section 39 (Certificate of completion of additional works to be given by mill owners' engineer).
- Section 40 (In his default by arbitrator).
- Section 41 (On certificate company may abstract further water).
- Section 42 (Provisions extended to further storage works).
- Section 43 (Notices to mill owners).
- Section 44 (Company to pay mill owners' engineers).

The Act of 1868—

- Section 43 (Company to make compensation for damage done by bursting of reservoirs).

The Act of 1912—

- Section 11 (Agreement with James Meakin and others).
- The Second Schedule.

THE THIRD SCHEDULE

THE ADDED LIMITS

In the county of Stafford—

The urban district of Stone and the parish of Talke in the urban district of Kidsgrove ;

The parishes of Ashley Audley Rural Balterley Betley Chapel and Hill Chorlton Keele Madeley Maer Mucklestone Tyrley and Whitmore (except so much of the said parish as immediately prior to the coming into operation of the Staffordshire (North Western Areas) Order 1932 formed parts of the parish of Trentham in the rural district of Stone) in the rural district of Newcastle-under-Lyme ;

The parishes of Barlaston (except so much of the said parish as immediately prior to the coming into operation of the Staffordshire (North Western Areas) Order 1932 formed part of the parish of Trentham), Chebsey and Milwich Eccleshall Fulford Hilderstone so much of the parish of Sandon as immediately prior to the coming into operation of the Staffordshire (North Western Areas) Order 1932 formed part of the parish of Stone Rural Sandon Stone Rural and Swynnerton (except so much of the said parish as immediately prior to the coming into operation of the Staffordshire (North Western Areas) Order 1932 formed part of the parish of Trentham) in the rural district of Stone.

THE FOURTH SCHEDULE

THE STONE AGREEMENT

AN AGREEMENT made the sixteenth day of June nineteen hundred and forty-nine between the URBAN DISTRICT COUNCIL OF STONE (hereinafter referred to as "the Council") of the one part and the STAFFORDSHIRE POTTERIES WATER BOARD (hereinafter referred to as "the Board") of the other part.

WHEREAS—

(i) The Council in pursuance of their powers under the Public Health Act 1936 and the Water Act 1945 own and are carrying on an undertaking for the supply of water within the urban district of Stone and certain parts of the adjoining rural district of Stone.

(ii) The Board are promoting in the present session of Parliament a Bill (hereinafter referred to as "the Bill") whereby they seek amongst other things to add to the limits of the Board for the supply of water certain areas (in the Bill and hereinafter referred to as "the added limits") which include the said urban district of Stone and the said parts of the adjoining rural district of Stone.

(iii) The Bill provides in subclause (3) of clause 35 (of which the marginal note is "Extension of limits of supply") that the Board shall pay to the council of any county district comprised wholly or in part within the added limits in respect of any works pipes plant or apparatus provided by them therein for the purpose of supplying

4TH SCH.
—cont.

water there such sum as may be agreed between the Board and such council or in default of agreement determined by an arbitrator appointed by the Minister of Health.

(iv) The Council have deposited in the House of Lords a petition against the Bill but they have agreed to withdraw the same upon the terms and conditions hereinafter contained.

Now it is hereby agreed between the parties hereto as follows (that is to say):—

1. In this agreement unless the context otherwise requires—

“the date of transfer” means the thirty-first day of March next after the passing of the Bill into law;

“the undertaking of the Council” means the water undertaking of the Council as a going concern including all lands water-works pipes plant machinery apparatus meters services fittings and other property and all rights and privileges vested in the Council and held by them for or in connection with the supply of water as the same shall exist on the date of transfer save and except—

(a) cash in hand and at the bank;

(b) amounts due from consumers and other debtors;

(c) investments and moneys in sinking funds reserve funds and other funds;

(d) loose stores tools stocks and materials; and

(e) any other assets held on revenue account.

2. The Council shall sell and the Board shall purchase the undertaking of the Council free from all mortgages and charges thereon and from any liability for the principal and interest of any outstanding debt of the Council in respect of the said undertaking.

3. The consideration for the said sale shall be the payment by the Board to the Council of the sum of twenty-one thousand seven hundred and fifteen pounds and the amount of any capital expenditure in respect of the said undertaking which shall be incurred by the Council between the agreement date and the date of transfer.

4. On the date of transfer the amount of the said consideration shall be paid to the Council and possession of the undertaking of the Council shall be given to the Board and the Council and all other necessary parties shall execute all such deeds and assurances and do all such other things as may be necessary for vesting in the Board the undertaking of the Council (if and so far as the same shall not be or become vested in the Board by virtue of the intended Act without further assurance) and for giving to the Board the full benefit of this agreement.

5. The Board shall accept without investigation or requisition the title of the Council to all lands and other property comprised in the undertaking of the Council.

6. The provisions of subclause (3) of the said clause 35 (of which the marginal note is “Extension of limits of supply”) shall be made inapplicable to the undertaking of the Council or any part thereof.

7. If for any reason the completion of the sale hereby agreed upon should be postponed beyond the date of transfer the Board shall pay to the Council interest at the rate of five per centum per annum on the amount of the said consideration from that date until the date of payment.

8.—(1) The Council shall be entitled to all water rates rents and charges and all income and receipts due or accruing to the Council in respect of the undertaking of the Council up to the date of transfer except water rates rents or charges payable in advance in respect of any period after that date and the Council shall bear and pay and discharge all expenses and outgoings and liabilities on revenue account in respect of the said undertaking incurred or owing up to that date and as from that date the Board shall be entitled to all such water rates rents and charges and income and receipts and shall bear and pay and discharge all such expenses outgoings and liabilities as aforesaid.

(2) All income and receipts and expenses and outgoings in respect of the undertaking of the Council on revenue account shall so far as necessary be apportioned between the Board and the Council as on the date of transfer.

(3) The Board shall at the request and expense of the Council take such steps if any as the Council may reasonably require for the recovery of any water rates rents or charges or other moneys which may be outstanding in respect of the undertaking of the Council at the date of transfer.

9. After the transfer of the undertaking of the Council to the Board the Council shall be responsible for their outstanding debt in respect of the said undertaking and shall keep the Board indemnified against the same and the interest thereon.

10. As from the date of transfer the Board shall take into their service all officers and servants of the Council who immediately before that date shall have been employed wholly or primarily in connection with the undertaking of the Council and shall be willing to enter the service of the Board and the Board shall employ them on work similar to that on which they shall have been engaged when in the service of the Council immediately before the date of transfer and upon such terms that they shall not suffer any loss or reduction of wages and emoluments in consequence of the transfer of the said undertaking to the Board.

11. The Bill shall be amended so as to make applicable to the officers and servants of the Council the provisions of section forty-four of the Water Act 1945 as if the Bill were an order made under that Act.

12. As soon as practicable after the date of transfer the Board shall instal and thereafter shall at all times effectively maintain and operate a water softening apparatus suitable and sufficient for treating all water from time to time supplied by the Board within the urban district of Stone.

13. In the event of any areas being added to the urban district of Stone by Act of Parliament or order of the Local Government Boundary Commissioners the Board subject to compliance with the

4TH SCH.
—cont.

next following clause hereof shall do everything within their power to enable them to give and at all times maintain a satisfactory supply of water throughout such areas and thereby so far as possible to relieve the Council from any need for giving guarantees in pursuance of the provisions in that behalf of the Water Act 1945 for the purpose of securing supplies of water for such areas.

14. Until such time as the water mains and services of the Council transferred to the Board in pursuance of this agreement are linked up with those of the Board in such manner and to such extent that the urban district of Stone will no longer be dependent for its main source of water supply on the sources comprised in the undertaking of the Council immediately before the date of transfer the Board shall not without the consent in writing of the Council use any water from the last-mentioned sources for the purpose of supply to new consumers outside the said urban district as existing at the agreement date in such manner or to such extent as to involve a risk of shortage temporary or otherwise in the supply of water within the said urban district as so existing.

15.—(1) For a period of ten years from the date of transfer the Board subject as hereinafter provided shall continue to charge in respect of supplies within the areas supplied by the Council immediately before the date of transfer the same water rates rents and charges as those charged by the Council immediately before that date.

(2) Provided that if at any time during that period circumstances should arise over which the Board have no control and which involve such increased costs of working the undertaking of the Council transferred to the Board as would have made it necessary for the Council if the undertaking had remained under their control to make increases in the said rates rents and charges in order to keep the undertaking self-supporting the Board shall be at liberty to make such increases in the said rates rents and charges as may be necessary for a similar purpose.

(3) The transfer of the undertaking of the Board or any part thereof to another authority or other authorities shall not be deemed a circumstance giving rise to such necessity as aforesaid.

(4) In the event of any dispute arising between the Board and the Council as to whether or not any increase of rates rents and charges is justifiable under this clause such dispute shall be referred to the Minister of Health (whose determination thereof shall be final and binding) or in the event of his being unable or unwilling to act shall be referred to arbitration in manner hereinafter provided.

16. Notwithstanding anything hereinbefore contained the Council after the date of transfer shall be entitled to retain possession of any books accounts vouchers and documents relating to the undertaking of the Council which may be required in connection with the audit of the accounts of the Council for any period prior to the date of transfer and to hold the same until completion of such audit but in the meantime the Board shall be entitled at all reasonable times to have access to such books accounts vouchers and documents and to make copies of or extracts from the contents thereof so far as may be necessary for the purposes of the Board.

17. This agreement is made conditionally upon the confirmation thereof by Parliament under the Bill and subject to any alterations which Parliament may think fit to make therein but if the committee of either House of Parliament to whom the Bill may be referred shall make any material alteration in this agreement it shall be competent to either party by notice in writing to the other party to withdraw from this agreement and thereupon this agreement shall be of no effect and the same and any provisions of the Bill relating thereto or consequential thereon shall be withdrawn from the Bill.

18. If any difference or dispute shall arise between the Board and the Council with respect to the meaning or effect of this agreement or anything therein contained such difference or dispute shall save as otherwise hereinbefore expressly provided be referred to and determined by a single arbitrator to be agreed upon between the said parties or in default of such agreement to be appointed at the request of either party after notice in writing to the other party by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or any statutory modification thereof for the time being in force shall apply to the arbitration.

In witness whereof the parties hereto have hereunto caused their respective common seals to be affixed the day and year first above written.

The common seal of the STAFFORD-
SHIRE POTTERIES WATER BOARD was
hereunto affixed in the presence of—

J. H. DALE Chairman

E. B. SHARPLEY Clerk

The common seal of the URBAN
DISTRICT COUNCIL OF STONE was
hereunto affixed in the presence of—

H. RUTHERFORD Chairman

M. C. DOWNING Clerk

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